

Contentious Chamber

Decision on the merits 59/2024 of April 22, 2024

File number: DOS-2018-03102

Subject: Complaint regarding a refusal to delist by a search engine

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, president, and Messrs. Jelle Stassijns and Yves Poulet, members, resuming the case in this composition;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter LCA);

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

Mr. X, represented by Master Vincent Chapoulaud, lawyer, whose office is located at 1030 Brussels, Square Vergote, 20, hereinafter referred to as "the complainant";

The defendant: Google Belgium SA, whose registered office is located at Chaussée d'Etterbeek 180, 1040 Brussels (Etterbeek) and registered with the Crossroads Bank for Enterprises (CBE) under number 0878.065.378, represented by Master Gerrit Vandendriessche and Master Louis-Dorsan Jolly, lawyers, whose office is located at 1000 Brussels, Avenue du Port 86C, B414, hereinafter referred to as "the defendant".

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I. Facts and procedure

1. On June 13, 2018, the complainant filed a request with the Data Protection Authority (DPA) against the search engine "Google Search."

2. The subject of this request concerns a number of links on the Internet, which refer to personal data relating to the complainant, for which he requested delisting from the Google search engine without receiving a favorable response. These links are as follows:

(a) [...]

(b) [...]

(c) [...]

(d) [...]

(e) [...]

(f) [...]

(g) [...]

3. The relevant press articles notably relay the fact that the complainant has held a series of political mandates. These articles also contain information about the complainant's appearance in judicial matters. Finally, these articles also present the complainant as the manager of a company (...).

4. In his request, the complainant states the following:

- In March 2018, he submitted, through his counsel, a request for the removal of these search results to the Google search engine via the web form provided (reference number XXX). His request is based on the inaccuracy of certain information that would be nothing but slander, lies, and insults intended to harm him in the context of personal vindictiveness. Other information would, given the time elapsed since their publication, be completely outdated, of no current interest, and devoid of relevance to the public. In general, the complainant emphasizes that he is not a person who plays a role in public life and that, in support of the preceding elements, the continued prominence of these search results that can be found based on his name and surname harms his honor and reputation.

- In response, the search engine informs the complainant that it did not find his name on the page referenced under (f) in point 2 above. Regarding the other links referenced under (a), (b), (c), (d), (e), and (g), the search engine refuses to grant the complainant's request, stating that "your role (read the role of the complainant)

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In public life, as well as the general interest, justify that we continue to include the URLs in question in our search results.

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The complainant also denounces that the search engine's form restricts the exercise of the rights of the concerned individuals by not allowing (due to the limited number of characters) a complete and detailed argument and by only permitting the exercise of their right to erasure, but not the exercise of their right to object.

5. Between June and October 2018, the Frontline Service (SPL) of the APD contacted the search engine several times in an attempt at mediation.

6. On October 5, 2018, the search engine team responsible for de-referencing requests responded as follows to the SPL of the APD:

"(...) In your letter, you asked Google LLC to remove the following URLs from Google Search's search results for queries related to the search term 'X' (i.e., the complainant): [the links referenced under (a) to (g) except for the link referenced under (f) are mentioned].

Upon consideration of this case, we are adhering to our original decision.

The press articles in question, which all date from the period 2015-2016, are written by serious and reputable newspapers (Le Monde, Le Soir, La Libre, La Dernière Heure, Het Nieuwsblad, NewsMonkey) and describe how the data subject exercised certain [political] mandates. (...) .

company, . (...) . Important is that the submitted URLs lead to press articles of reputable news sources, independently reporting on well-substantiated allegations of wrongdoing by the data subject.

You mention in your letter that Mr. X has a clean criminal record. The reputable news sources do not, however, mention any criminal convictions. Also, Mr. X seems to object to his being presented as a member of [a political party]. We would like to point out that, rather on the contrary, it seems to be clear that he was himself not a member of the said political party, and that one of the news sources even goes as far as to specifically state that Me X "n'est toutefois pas un membre du parti (...)".

Mr. X further objects to the claim that he was expected to appear in court in (...), with the sole explanation that "this is false." Google, however, is not in a position to evaluate the truth or falsehood of statements made on third-party web pages. Accordingly, we believe that the appropriate route for addressing concerns about statements that are of significant public interest, but that are allegedly false and defamatory, is for courts to take evidence and make appropriate factual determinations. We use Section 5(b) of the Article 29 Working Party's Criteria of November 26, 2014, to guide our evaluation of such requests.

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We believe there is a clear public interest in access to this information (...).1."

7. On October 9, 2018, the SPL informs the complainant of the response received from the search engine.

On the same date, the complainant requests that the provisions of the GDPR be fully applied to their case.

8. On October 22, 2018, the SPL informs the complainant of the failure of the mediation observed. In support of Article 62.2 of the LCA2, it asks the complainant whether they agree to transform their request into a complaint, in which case their complaint will be transferred to the Contentious Chamber.

9. On October 24, 2018, the complainant agrees for the procedure to continue before the Contentious Chamber.

10. On October 30, 2018, the complainant's counsel sends their observations on the search engine's reaction to the APD.

11. On November 14, 2018, the Contentious Chamber decides, under Article 95, § 1, 1° and Article 98 of the LCA, that the case can be addressed on the merits.

12. On November 21, 2018, the complainant and the search engine Google are informed by registered

mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA.

13. By letter dated November 29, 2018, they are also informed, under Article 99 of the LCA, of the deadlines for submitting their conclusions.

14. In response to this letter, the defendant indicates on November 30, 2018³ that it presumes to be the recipient of the letter under Article 98 LCA sent to the address of the search engine establishment in Belgium, while specifying that it has forwarded this letter to Google LLC, the latter being the only data controller concerned by the reported processing. The defendant adds that it agrees to receive communications in this case electronically and expresses its intention to submit conclusions and, "subject to further examination of the case," its wish to be heard by the Contentious Chamber during a hearing.

1 It is the Contentious Chamber that emphasizes this.

2 Article 62.2 of the LCA: "(...) admissible requests are handled by the frontline service. If a settlement is reached between the parties through the intervention of the frontline service, the frontline service drafts a report in which it presents the solution found as well as its compliance with the legal principles regarding data protection. A settlement does not exclude the supervisory competence of the Data Protection Authority. If no settlement can be reached, the initial mediation request takes the form of a complaint that can then be forwarded by the frontline service to the Contentious Chamber for substantive processing subject to: 1° the applicant's agreement; or 2° observation (...)"

3 The Contentious Chamber notes that this letter was addressed to it in Dutch. It does not consider itself less entitled to adopt this decision in French based on the language in which the complaint was filed and based on the French language in which the withdrawal conclusions of each party were subsequently submitted (see below).

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15. On the same date, the defendant requests a copy of the file (art. 95, §2, 3° LCA), which is transmitted to her on December 3, 2018.

16. By separate letter dated November 30, 2018, Google LLC expresses its wish to intervene voluntarily in the case as the sole data controller within the meaning of Article 4.7 of the GDPR and inquires with the Contentious Chamber about the modalities for doing so. Ultimately, Google LLC did not intervene voluntarily in the case.

17. On December 19, 2018, the deadlines for submissions are modified as follows: the deadline for the defendant's response submissions is set for January 28, 2019, the deadline for the complainant's reply submissions is set for March 28, 2019, and the deadline for the defendant's reply submissions is set for April 29, 2019.

18. On January 18, 2019, the defendant sends the Contentious Chamber "Conclusions" in which she requests to dismiss the complaint for the following two reasons:

- On the one hand, the procedure has been wrongly directed against her (she is not the data controller);
- On the other hand, "the parties have amicably settled the dispute that is the subject of this procedure through a settlement agreement. In their settlement, the parties agreed that (1) the complainant withdraws his action before the APD and that (2) the defendant accepts this withdrawal of action." The defendant concludes on this basis that "it is therefore appropriate to acknowledge the complainant's withdrawal of his action and to acknowledge the defendant's acceptance of the complainant's withdrawal of action."

19. Regarding the scope of this withdrawal, the defendant specifies in a subsequent letter dated June 25, 2019, addressed to the Contentious Chamber that "the agreement reached between the parties entails the complainant's withdrawal of any action against the defendant and any other entity of the Google Group (including Google LLC, the data controller)."

20. In these same "Conclusions" (point 15), the defendant further requests the Contentious Chamber not to publish its decision as it believes that, in light of the loss of object of the complaint resulting from the agreement reached and the parties' request to dismiss it, there is no reason to publish it. She adds that the publication of the Contentious Chamber's decision would give publicity to the case that would be contrary to the interests of the parties and that more specifically, such publication could have a

counterproductive effect for the complainant who is precisely seeking to avoid media attention.

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21. On March 20, 2019, the complainant also submits "Conclusions of withdrawal of action" to the Contentious Chamber in which he requests (1) to acknowledge his withdrawal of action, (2) to acknowledge the defendant's acceptance of this withdrawal, (3) to dismiss his complaint, and (4) to decide not to publish its decision.

22. On June 12, 2019, the Contentious Chamber writes to the parties that before taking the case under deliberation at a forthcoming session, it invites them to provide the signed agreement reached, within a period of 2 weeks.

23. On June 25, 2019, the defendant's counsel informs the Contentious Chamber that the parties are unable to provide the agreement reached between them, notably on the grounds that they are bound by a confidentiality clause.

24. On June 25, 2019, the complainant's counsel writes to the Contentious Chamber that he agrees with the content of the letter from the defendant's counsel and that on the one hand, the withdrawal conclusions filed for his client confirm the total absence of dispute between the parties, who remain masters of the procedure, and that on the other hand, the settlement agreement is confidential and cannot be produced.

25. On February 23, 2024, the Contentious Chamber asks the defendant's counsel to kindly indicate whether the latter maintains her request for a hearing or, on the contrary, waives it in light of the developments that have occurred (namely the agreement with the complainant and the withdrawal communicated to the Contentious Chamber) since her initial request expressed "subject to further examination of the file" on November 30, 2018 (point 14).

26. On March 4, 2024, the defendant's counsel informs the Contentious Chamber that the defendant does not persist in her request for a hearing, particularly in light of the withdrawal of her complaint by the complainant.

II. Motivation

27. The complaint submitted for examination by the Contentious Chamber concerns the exercise by the complainant of his right to erasure (de-referencing). His request concerns links referenced in the results provided by the search engine "Google Search" when his name is entered as a search criterion.

28. As previously stated, no favorable outcome was given to the complainant's request based on the reasoning reproduced in points 3 and 6 above. Following this refusal, the complainant filed a mediation request with the APD, which subsequently became a complaint, as the mediation failed.

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29.

As has also been stated, the parties to the present proceedings have each submitted "Conclusions (of withdrawal)" during the proceedings, in which they indicate that the complainant withdraws their action before the Data Protection Authority (DPA) and that the defendant accepts this withdrawal (points 16 and 19).

30. The Contentious Chamber relies in this case on its Note on the Policy of Non-Pursuit, which clarifies certain elements of the procedure and establishes priorities, to classify the present complaint as non-pursued based on Article 100, § 1, 1° of the LCA.

31.

More specifically, the Contentious Chamber relies on criterion A.6. of its Policy of Non-Pursuit, of which the present case is, in its view, an illustration.

32.

According to its aforementioned Policy of Non-Pursuit, this withdrawal generally implies a classification as non-pursued unless exceptional circumstances justify that the case not be classified as such.

33. Indeed, the review by the Contentious Chamber is not so much aimed at resolving disputes between parties but rather serves as one of the instruments available to the DPA to ensure compliance with the rules regarding data protection, in accordance with the provisions of European treaties, the GDPR, and the LCA. Thus, if a complaint is filed and subsequently referred for examination to the Contentious Chamber as an admissible complaint, the Contentious Chamber must assess whether the

reported facts constitute a violation of one of the legal provisions whose compliance is subject to the DPA's oversight. This review also extends to the evaluation of breaches that the complainant may not have directly identified themselves and that the Contentious Chamber would subsequently highlight in accordance with the principle of adversarial proceedings. In the same vein, the mere fact that the complainant withdraws their complaint (as well as the finding that the breach may have been remedied during the proceedings, for example) does not negate any violation that may have been committed by the data controller nor does it deprive the competent bodies of the DPA, including the Contentious Chamber, of the exercise of their respective competencies.

34. In other words, the withdrawal of the complaint by the complainant does not divest the Contentious Chamber of the case. This withdrawal is an element that it will duly consider in deciding, if applicable, to classify the complaint as non-pursued (point 28 above). Circumstances specific to the case may indeed justify that, notwithstanding the withdrawal of the complaint, the Contentious Chamber continues its examination of it in the exercise of its competence as recalled in point 28 above.

35. The case concerns the exercise by the complainant of their right to erasure. This right is to be considered as a major protection for the individuals concerned. It is certainly closely linked to the complainant's willingness to exercise their rights. In the same

4 See in this sense the decision 41/2020 of the Contentious Chamber (point 12).

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In the case of a request for de-referencing press articles from a search engine, the exercise of this right can only be satisfied after an analysis that balances the complainant's right to data protection on one hand with the public's interest in the accessibility of this information on the other. Depending on whether primacy is given to one or the other of these rights weighed against each other, the request for deletion (de-referencing) will or will not be granted. In other words, it is not solely a matter of exercising an individual right (the right to deletion) but also of the general public interest in having easy access to this information.

36. The Contentious Chamber emphasizes in this regard that it is the exercise carried out by the search engine, arriving at the conclusion on October 5, 2018 (point 6) that primacy should be given to public accessibility to the information concerned.

37. As stated above, following a settlement agreement reached with the defendant in the context of the present proceedings once its appeal was filed with the Data Protection Authority (DPA), the complainant withdrew their complaint. The Contentious Chamber is unaware of the content of this agreement and the conditions under which this withdrawal occurred, notably against what consideration (financial? production of documents by the complainant that would attest to the defamatory nature of certain information or its inaccuracy?) and, if applicable, for what reasons there would have been, once the complaint was filed with the DPA, a reversal of the balance of rights in favor of the complainant and not the public's right to information in the general interest. The Contentious Chamber declares itself opposed to any potential practice that would consist of negotiating the withdrawal of a complaint for financial consideration.

38. In the absence of being able to access the content of the agreement and the conditions under which it was obtained, the Contentious Chamber can only note that it is unable to establish that exceptional circumstances would justify the continuation of the examination of this grievance of the complaint. In other words, the Contentious Chamber considers that in this case, the fact that the complainant informed it of their intention to no longer exercise their right – via the aforementioned withdrawal conclusions – has emptied the file of the legal questions concerning this point. As stated above, the Contentious Chamber could reach a different conclusion in other cases of this type.

39. It appears from the complaint that another breach of the GDPR is also alleged by the complainant. This particularly concerns the complaint made by the complainant regarding the complaint/deletion request form made available by the search engine, which would not allow for an effective exercise of the rights of the data subjects (point 5).

40. The Contentious Chamber notes that in the present case, the alleged violation regarding this form is inextricably linked to the complainant's exercise of their right to deletion, an exercise to which they have renounced and regarding which the Contentious Chamber has concluded that it did not have

elements justifying further examination of this grievance notwithstanding the aforementioned withdrawal.

41. In conclusion, after reviewing the file, the Contentious Chamber believes that it does not fall, in light of all the grievances alleged and considering the specific elements of this file, into the category of those presenting exceptional circumstances that would justify the complaint not being dismissed. This decision does not exclude that in other circumstances, in the context of another file, the Contentious Chamber may adopt a different position, regarding the form for example.

III. Regarding corrective measures and sanctions

42. Under Article 100.1 of the LCA, the Contentious Chamber has the power to:

- 1° dismiss the complaint;
- 2° order a non-suit;
- 3° pronounce a suspension of the ruling;
- 4° propose a settlement;
- 5° issue warnings or reprimands;
- 6° order compliance with the requests of the data subject to exercise their rights;
- 7° order that the interested party be informed of the security issue;
- 8° order the freezing, limitation, or temporary or permanent prohibition of processing;
- 9° order compliance of the processing;
- 10° order the rectification, restriction, or deletion of data and notification of these to the data recipients;
- 11° order the withdrawal of the accreditation of certification bodies;
- 12° impose penalties;
- 13° impose administrative fines;
- 14° order the suspension of cross-border data flows to another State or an international organization;
- 15° refer the file to the Public Prosecutor of Brussels, who informs it of the follow-up given to the file;
- 16° decide on a case-by-case basis to publish its decisions on the website of the Data Protection Authority.

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43. In matters of dismissal without further action, the Litigation Chamber must justify its decision step by step:

- pronounce a technical dismissal without further action if the file does not contain or does not contain sufficient elements likely to lead to a sanction or if it includes a technical obstacle preventing it from making a decision;
- or pronounce an opportunistic dismissal without further action if, despite the presence of elements likely to lead to a sanction, the continuation of the examination of the file does not seem appropriate given the priorities of the Data Protection Authority (DPA) as specified and illustrated in the Litigation Chamber's Policy on Dismissal Without Further Action.

44. In the event of a dismissal without further action based on multiple grounds (respectively technical and/or opportunistic dismissal), the grounds for dismissal must be addressed in order of importance.

45. In the present case, the Litigation Chamber decides to proceed with a technical dismissal without further action based on Article 100.1.1° of the LCA due to the withdrawal of the complaint by the complainant coupled with the impossibility of demonstrating other potential violations that could be attributed to the defendant in this case.

IV. Publication of the Decision

46. Given the importance of transparency regarding the decision-making process of the Litigation Chamber, this decision is published on the website of the Data Protection Authority (DPA).

47. The Litigation Chamber cannot, in fact, grant the parties' request not to publish this decision.

48. In accordance with its Policy on the Publication of its Decisions, the Litigation Chamber publishes each of its decisions with the aim of administrative transparency, which is required both in its missions as a data protection supervisory authority (Article 57.1. b) and d) read in conjunction with Article 51 of the GDPR) and in its capacity as an administrative authority subject to the principles of good administration. It is in this regard that this decision is published. In this respect, the

6 <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.

7 Policy on Dismissal Without Further Action of the Litigation Chamber, 06/18/2021, point 3 ("In what cases is my complaint likely to be dismissed without further action by the Litigation Chamber?"), available at <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-sans-suite-de-la-chambre-contentieuse.pdf>.

8 Data Protection Authority, Litigation Chamber, Policy on the Publication of Decisions of the Litigation Chamber dated December 23, 2020: <https://www.autoriteprotectiondonnees.be/publications/politique-de-publication-des-decisions-de-la-chambre-contentieuse.pdf>.

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The Contentious Chamber ensures that its decision regarding publication is included under a "Publication" section and not under the "Regarding Corrective Measures and Sanctions" section.

49. This publication also aims to provide visibility to the work of the APD (role of information and awareness towards businesses and citizens, including the press), work for which it must publicly account (both to political decision-makers and the general public). The independent administrative authority nature of the APD, as well as its extensive missions and powers, indeed justifies that it must publicly report on its work and allow everyone to easily and transparently access its positions.

Ultimately, one of the missions of the Contentious Chamber is also to establish coherent case law. To this end, and so that the interested public can appropriate it, it is essential to publish its decisions, including the present one. The age of the case and the fact that publication of it might bring attention back to the complainant, who specifically requested the de-referencing of the aforementioned press articles, are arguments that the Contentious Chamber takes into account not by refraining from publishing the decision but by omitting the direct identifying data of the complainant (see below) and, as far as possible and within the limits described by its Policy on Non-Pursuit, by omitting the indirect identifying data of the latter, specifically considering the age of the case and the withdrawal of the complaint.

50. As highlighted in its aforementioned Policy, unlike the publication of the decision under "sanction," the issue of identifying the parties is less significant in the context of publication for transparency purposes as in this case. The sought objective can indeed be achieved whether or not the parties are identified. The Contentious Chamber nonetheless specifies that the publication of identifying data of legal entities is sometimes justified for a general interest purpose, due to the position of the data controller in society or the importance of the decision for the general public.

51. In this regard, the Contentious Chamber believes that the publication of the present decision with the identification of the defendant serves several objectives. Firstly, it aims for a general interest objective given the importance of the search engine "Google" for many internet users and the fact that a very large number of people residing in Belgium are referenced in one way or another by this search engine. The Contentious Chamber finds it relevant to give this decision publicity that raises awareness among internet users of the rights they have under the GDPR, even if the outcome of this case is a decision of non-pursuit. In this regard, even if the decision only directly concerns the complainant (whose data...